iSWIM

DEATH AND THE MAIDEN

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Issues of Significance

Open-Ended Discussion Questions

1 TRUTH AND THE BODY

i + S

Paulina recognises her torturer by his voice, his scent, his quotation of Nietzsche. Her body holds a truth that no legal system is designed to hear.

DISCUSSION

Can the body know something that the mind cannot prove? Is sensory recognition a legitimate form of evidence?

If your certainty about an experience cannot be verified by anyone else, does that make it less true – or does it expose the limits of what institutions can accommodate?

What happens to justice when the most important evidence exists in a form that no court can process?

2 THE COST OF TRANSITION

i + S + W

When a society moves from dictatorship to democracy, someone decides what counts as an acceptable price for stability. That someone is almost never the victim.

DISCUSSION

Who benefits when a nation chooses to “move forward” rather than confront what was done?

Is the promise of “never again” meaningful if the people who committed atrocities face no consequences?

Can a new democracy be built on the suppression of the old regime’s crimes – or does the suppression itself become a founding violence?

3 DUE PROCESS AND ITS EXCLUSIONS

W + I

The rule of law promises fairness. But fairness is defined by the system – and systems are designed by the people who hold power, not the people who suffered under it.

DISCUSSION

Can due process be a form of injustice – when the process itself is incapable of hearing certain kinds of truth?

If a legal framework was designed to protect stability rather than deliver accountability, is it still "justice"?

Whose interests are served when we insist that only institutionally verifiable evidence counts?

4 THE CONFESSION PROBLEM

W + I + M

Roberto confesses. But the confession is coerced. Can a coerced confession be true? Can a voluntary denial be a lie? The play refuses to let you know.

DISCUSSION

If someone confesses under threat, does the content of the confession become unreliable – even if it happens to be accurate?

What does our desire to know "for certain" whether Roberto is guilty reveal about our own need for narrative resolution?

Is it possible that certainty is not available in this situation – and that the demand for certainty is itself a way of avoiding the moral weight of the unresolvable?

5 COMPLICITY AND CONCEALMENT

S + W + M

Gerardo is the voice of reason, fairness, and the rule of law. He is also hiding an affair. The man who insists on transparency is himself practising concealment.

DISCUSSION

Does private dishonesty compromise public moral authority – or can someone advocate for justice whilst being personally compromised?

If the institutions of transitional justice are administered by people with their own secrets, does this undermine the institutions or merely reveal something about all institutions?

What does it mean that the play's representative of liberal democracy is also its most consistent liar?

6 BEAUTY AND ATROCITY

i + S + M

Schubert's Death and the Maiden is one of the most beautiful pieces in the Western canon. It was also the music that accompanied Paulina's torture. Neither fact cancels the other.

DISCUSSION

Can high art be permanently contaminated by the uses to which it is put – or does beauty transcend context?

What does it reveal about civilisation that the same culture that produced Schubert also produced the conditions for torture?

If the torturer has "good taste," does that make him more monstrous or more human – and does it matter?